

Research Article

Indian Civil Service and The Sardar Patel

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ARTICLE INFO

Received: 2nd March 2026

Accepted: 29th April, 2026

Published: 11th May, 2026

Pages: 37 - 48

Abstract

The evolution of the Indian Civil Service (ICS) into the modern administrative framework of independent India represents one of the most significant transformations in the nation's governance system. During the colonial period, the ICS functioned as the administrative backbone of the British Empire in India, primarily serving imperial interests. However, after independence in 1947, the challenge before Indian leaders were to reconstruct this bureaucratic machinery to serve democratic governance and national development. In this context, Sardar Vallabhbhai Patel played a decisive role in preserving and strengthening the civil services of India. Recognizing the importance of an efficient, impartial, and disciplined administrative system, Patel strongly advocated for the continuation of an all-India civil service structure despite criticism from several political leaders who associated the ICS with colonial rule.

Sardar Patel is widely regarded as the "Architect of the Indian Civil Services" because of his efforts to establish the Indian Administrative Service (IAS) and the Indian Police Service (IPS) as successors to the ICS. He believed that a united and stable India required administrators who could work beyond regional, linguistic, and political divisions. Addressing the Constituent Assembly in 1949, Patel described civil servants as the "steel frame" of India, emphasizing their role in maintaining national unity, law and order, and administrative continuity. His vision ensured constitutional safeguards, security of tenure, and professional independence for civil servants, enabling them to function without political pressure.

The contribution of Sardar Patel laid the foundation for India's modern administrative system. His commitment to integrity, neutrality, and public service continues to influence Indian bureaucracy today. The study of Indian Civil Service and Sardar Patel highlights the transition from colonial administration to democratic governance and underscores Patel's enduring legacy in shaping the administrative unity and stability of independent India.

Key Words: Sardar Vallabhbhai Patel, Indian Civil Service (ICS), Indian Administrative Service (IAS), Indian Police Service (IPS), Administrative Reforms, Colonial Administration, Democratic Governance, Bureaucracy, National Integration.

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Introduction:

In October-1946, as the Home Minister of the interim government, Sardar Patel called a conference of the Premiers of various provinces. The Premiers of the provinces of that time were considered to be equivalent to the Chief Ministers of various states. The purpose of convening this conference was to obtain the consent of the heads of the provinces regarding the formation of two new all-India civil services namely Indian Administrative Service and Indian Police Service (IPS) to replace Indian Civil Service (ICS) and Indian Police (IP) during British rule.' In addition to inducting competent and honest officers who can successfully administer the country after the partition of India into this civil service, Sardar Vallabhbhai Patel, who was in charge of the Home Office of the country, was in favor of pre- planning of how to involve the ICS and IP officers who served during the British rule in the construction of India and to make their facilities and conditions of employment favorable. Most of the Muslim officers in the British civil service chose to go to Pakistan and the British officers returned home. In such a situation Sardar was also anticipating the proper formation of post-independence India by retaining Indian ICS officers in the Indian administration through their sincere contribution. Vallabhbhai was determined to do whatever was in the interest of the nation even though many of his colleagues including Pandit Jawaharlal Nehru of his own Congress did not like his role and this matter is echoed in the aggressive debate in the Constituent Assembly on the issue of providing constitutional security cover to ICS officers ¹.

Idol of civil servants:

Before independence, Vallabhbhai promised that the rights and conditions of Indian civil servants would be maintained. Just as the royalty of hundreds of princely states trusted the promise of Sardar Patel and supported the image of a united India by placing their wealth of billions at the feet of the country, similarly the civil servants also trusted the promise of the Sardar and joined the work of nation building after the departure of the British rulers. In this perspective, P.N. Haksar has chosen to call Vallabh bhai "the idol of civil servants".

After the British rule in India was over, it was natural for the British ICS officers who were working in the Government of India to have a situation of confusion. It was natural for the British ICS officers to be suspicious of how the local/native rulers would treat them because, until now, they had oppressed the native Indians to protect British interests, at the behest of the British rulers. British Prime Minister Clement Attlee on 15 March 1946 announced the right of Indians to frame their own constitution. After the departure of the British, the position of civil servants in the All-India Service and the Central Service was yet to be clarified and their question remained unresolved. Civil servants were classified into three categories. (1) European members (2) Muslim officers (3) Hindu and other caste officers. All these three categories of officers under British rule were assured by the British rulers that those civil servants among them who wanted to stay in India would be maintained in their previous status and those who wanted to leave India would be paid adequate compensation. British Prime Minister Attlee made this kind of announcement on April 30, 1947 in the General Assembly ².

Seeing the atmosphere of distrust towards the British officers and the clouds of communal violence, most of the British officers decided to return to England, accepting the option of a proportional pension. Most of the Muslim officers chose to join the service of Pakistan. While the Hindu officials admitted to stay in India. Coincidentally, fresh recruitment of civil servants was halted from 1943 due to the unstable situation during the Second World War. The total number of ICS officers before independence was 1157, of which 608 were British. After independence the total strength of ICS officers was 451 and only 33 British officers remained in India. It is well known that Jawaharlal Nehru himself expressed doubts about the loyalty of ICS officers in independent India. At that time there was universal disdain for ICS and IP officers in India. In such circumstances, the interim government focused on completely restructuring the bureaucracy. ³

In the Constituent Assembly on October 10, 1949, in the absence of the Chairman of the Constitution Drafting Committee Dr. Babasaheb Ambedkar, the second member of this committee and a confidant of Sardar Patel, K.M. Munshi presented the proposal. In which the ICS officers who wish to remain employed in the Indian service even after India's independence, have been proposed to provide safeguards under the constitutional provisions, including terms of

employment, security against disciplinary action against them and payment of members of the Constituent Assembly, including compensation or pension in foreign currency. The

Vice President Anantharaman Iyengar, raised a lot of uproar against these provisions which were included in the Constitution as Article 283. However, the Sardar effectively defended the performance of the ICS officers by hailing their nationalism and It was left to the members concerned to object to the acceptance of the relevant article as part of the constitution and to insist on the proposals presented for its amendment. And thus, the above Article was included in the Constitution.

Article inserted as 283-A in the Constituent Assembly provided privileges to ICS officers. The matter was included in the Constitution as Article 314 and was repealed in 1972 as being against the right to fundamental equality as it violates equality between officers.

However, a study of the proceedings of the Constituent Assembly on October 10, 1949 showed that most of the senior members of the Constituent Assembly raised a lot of uproar against the proposal to give constitutional assurances to the ICS officers under Article-283 of the Constitution, proposed by the Sardar's confidant/loyalist and member of the Constitution Drafting Committee, K. M. Munshi. And Sardar Patel had to intervene in it. After that, the objections and opposition raised against the inclusion of the relevant article in the Constitution were overcome⁴.

ICS officer HM Patel, a son of Charotar, who worked very closely with Sardar Patel during the last four years of his life, noted that,

"One of the things that deserved top priority in Sardar Shree's mind after independence was to think services. As British and Muslim members were about the successor services to these earlier All India leaving these services, the strength of the civil service was depleted and vacancies had to be filled as satisfactorily as possible. For this work he appointed Gowalla (who retired from this service) and Mr. R. L. Gupta of the Indian everyone the importance of all-India services. In should bring the matter to my notice and I will not particular, he emphasized that the Centre would be partial to anyone who is guilty. I will not hesitate continue to receive experienced bureaucrats from to take action against them. We have fought against every part of the country. Many Chief Ministers were the British for so many years, I have been their worst not in favor of the Sardar Shree's resolution, as they enemy and they also consider me the same. But I was keen to see him have complete control over the want to say frankly that they now prefer to consider bureaucrats employed in the states, while the all-India me as their sincere friend. bureaucrats allotted to their states would ultimately be under the discipline and control of the Centre. However, they finally convinced themselves to accept Sardar Shree's word and the Indian Administrative Service and Indian Police Service were formed⁵.

Speaking members like H. V. Kamat, Naziruddin Ahmed, Mahaveer Tyagi, Rohini Kumar Chaudhary, R. K. Sidhwa, Dr. P.S. Deshmukh including M. Ananthasayanam Iyengar, protested against the higher salaries of ICS officers compared to ministers and the perks they were given, including luxurious cars. Most of the members disagreed with the idea of providing constitutional protection to civil servants who had jailed them and worked at the behest of the British rule as they had served imprisonment for participating in the freedom movement under the Congress leadership.

Amidst all these protests, Sardar Sahib expressed his regret in the Constituent Assembly and strongly condemned the tendency to call ICS officers 'enemies of the country'. His lecture of that day can be considered as a memorable. In the same lecture, Sardar Sahib revealed that Jinnah wanted the whole of Punjab and Bengal in Pakistan, but we divided Punjab and Bengal and accepted the partition on the condition that Jinnah accepted half of Pakistan⁶.

Sardar Patel gave what can be called a Magna Carta speech on the rights of bureaucracy⁷. Sardar described civil servants as custodians of national interests and expected that officers of the All-India Service would provide corruption-free administration. He also made it clear that he was not in favor of protecting corrupt officials. He also suggested to the members of the Constituent Assembly to support the proposal to give constitutional guarantees to civil service officers that any civil servant who misbehaves, dereliction of duty or neglects their duty should bring the matter to my notice and I will not be partial to anyone who is guilty. I will not hesitate to take action against them. We have fought against

the British for so many years I Have been their Worst enemy and they also consider me the same. But I want to say frankly that they now prefer to consider me as their sincere friend'^{s 8}

Sardar Sahib did not like bureaucratic bureaucracy, and was of the clear opinion that if he wanted an efficient all-India service, civil servants should be allowed to speak freely. If the civil servants cannot present the truth by succumbing to any kind of fear or temptation, then the loss is going to be the country itself. He clearly believed that if the rights and privileges of civil servants are secured through Parliament, they will work in the interest of the nation at the cost of security. Otherwise, we are the master and you are the servant so you have to follow our orders, if such stubbornness or perversion is kept, then why is this constitution needed? An angry Vallabhbhai said in the Constituent Assembly itself:

"In such circumstances, one can replace the existing constitution with another one. The Congress constitution can be replaced, or some other constitution can be installed, or the RSS constitution can be installed; any constitution that you think is okay can be installed, but not this one. The current constitution document. "The bureaucratic structure is to keep the country organized. Despite some constitutional objections, the bureaucratic structure will keep the country in control as a result of our collective deliberate decisions .⁹

Sardar Patel had full confidence in the civil servant's ability to contribute to nation building and also had faith in their devotion and allegiance to the nation He trusted all the officers who worked with the Sardar and allowed them to work. Not only this, - he was also given an opportunity to submit a similar note to the officials who had a different opinion than him. That is why Sardar Saheb's views differed from the senior Congressmen including Nehru and when he died on 15 December 1950, the next day a meeting of 1500 officers was held to be pay homage to Dardar under the chairmanship of denier ICS officer Girjashankar Vajpayee. That event can be considered undertaking in the Cabinet. The government agreed as unprecedented, as such a meeting has never been to include such guarantee given to civil servants in held since then. In this meeting all the officers took an oath to serve India with complete loyalty and utmost zeal .¹⁰

Preservation of Interest of Officials:

H. M. Patel, a highly trusted civil servant who was closely associated with Sardar Patel, records the Sardar's experience of the officers of the Indian Service in these words:

Sardar has rendered valuable services in many fields. e.g. An important question had to be resolved by the Sardar on the part of pre-independence (before transfer of power) India in the formulation of an agreement with civil servants. That was the question of L India Covenanted Services (Indian Civil Service and Indian Police Service). The above agreement was made in England between the officers of these two services in the employ of India and the Government. The Secretary of State for India signed the agreement on behalf of India. The British Government drew up a plan on the assumption that officers of the Indian Service, whether British or Indian, would resign after the transfer of power. Officers should be given an option to continue in the job or leave the job, and if the officers decide to leave the job, they should be compensated by the government.

Sardar clarified at this stage that the Government of India will also be ready to guarantee the same conditions of employment which were guaranteed in the Covenant. This being so, it becomes the duty of the Indian civil servants to continue in the job. If they leave the job, there is no question of compensating them. Only that the Government of independent India would dismiss those Hindi officers whom they did not want to be employed. The Government of India shall have the right to select from among the British officers who wish to continue their employment in India. It was finally decided that the British Government would compensate the British and Indian officers who did not continue in the service of the Indian Government. Sardar, according to his method, secured the support of this undertaking in the Cabinet. The government agreed to include such guarantee given to civil servants in the Constitution of India.

The Congress as an organization had a deep dislike for the Indian Civil Service. Sardar also did not have any special feelings towards these two. But Sardar was a man of great stature. These officers had taken necessary action against Congressmen in the past, but those were actions taken as part of their duty. Sardar understood very well that an

independent and efficient administrative service is not only important but indispensable in a democracy. So, Sardar was ready to welcome and trust Indian civil and police officers.¹¹

Creation of people oriented administrative service:

Shri Praveen K. Laheri, an IAS officer who retired as the Chief Secretary to the Government of Gujarat and grew up in a Gandhian family, is an ardent student of Gandhiji and Sardar Patel. In a special interview with this researcher, Mr. Laheri elaborated on Sardar Sahib's sentiments including the 'indigenization of civil service' and drew conclusions summarizing his administrative experience.

Sardar Patel started public life in 1917. On the occasions of Kheda Satyagraha, Ahmedabad Sardar clarified at this stage that the Government Municipality, Borsad Satyagraha etc., he had disputes of India will also be ready to guarantee the same with two British ICS officers Mr. Prat and Mr. Master conditions of employment which were guaranteed on many issues. The dispute with Municipal in the Covenant. This being so, it becomes the duty Secretary Bhagat reached such an extent that Sardar of the Indian civil servants to continue in the job. If resigned from the municipality. During the Nagpur they leave the job, there is no question of Zanda Satyagraha, Bardoli Satyagraha and many compensating them. Only that the Government of other occasions, Sardar's attitude was that every independent India would dismiss those Hindi officers' government official is bound to do public works. whom they did not want to be employed. The Whether it was lack of integrity, laziness, abusive Government of India shall have the right to select practices or corruption, Sardar remained committed from among the British officers who wish to continue to administrative reform by taking firm and their employment in India. It was finally decided that exemplary action against every lapse in government. the British Government would compensate the Sardar's independent temper, outspokenness and British and Indian officers who did not continue in sarcasm made many feel that Sardar and government officials would never get along.

Sardar, who entered public life in 1917, has mainly been responsible for the organization of the party. After 29 years in 1946, Sardar assumed the responsibility of Deputy Prime Minister of the pre- independence caretaker government with portfolios of Home, Broadcasting and Native States.

In 1948, America's 'Time' magazine put Sardar's photo on the front page and called him 'The Boss' and at the same time put a picture of hope showing masculinity. Many newspapers and individuals including 'Time' believed that Sardar Patel was the driving force of the government for three years after independence. There were such fear and awe of the Sardar's administration that it was humorously said that even if you put a Sardar's bright acorn on the seat of power, the government will run smoothly.

Because of the ferocity shown by Sardar in the pre-independence agitation, the rulers of the administration were feared by him. But several officers who worked with Sardar wrote very emotionally in their memoirs that Sardar had full faith in his officers. After giving brief instructions about the work, he used to motivate the officers to freely perform result-oriented work. If any officer made a mistake, he was given adequate protection. Due to this, in very short time Sardar earned the confidence of the entire administration.

During the debate on the constitution, Article 311(a) protecting government servants was proposed to provide protection to ICS officers and pension in foreign currency, Sardar risked his reputation in the midst of many fierce protests and got this clause accepted.

By giving constitutional status to ICS and IPS in the All-India Service, a strong link between the states and the center has been established, due to which administrative uniformity has been maintained even in the midst of vices like linguisticism, regionalism.

To understand the relationship between the Sardar and the bureaucracy and to get guidance on the relationship between elected ministers and selected officers, one must read Sardar's speech at Delhi's Metcalfe House welcoming the first batch of IAS for training. Sardar clearly believed that administration is a powerful tool. Administration should be people-oriented. Only if the government is competent, reliable, fair and fearless can citizens get a true sense of democracy.

Thus, we see that Sardar used the power of the officers well in solving the very serious situation that arose due to the separation from the rulers after independence and in merging the native states before independence without giving them the form of prejudice and criticism during the satyagraha's conducted against the rulers. It is an indisputable fact that the pre-independence organizer Sardar proved to be a brilliant, visionary and compassionate ruler.

For Sardar Patel, the Indian Civil Service was a group of skilled, knowledgeable and experienced people. It was Sardar's firm belief that men selected on the basis of the rule of law, location and quality in its administration could rule in an excellent manner. India's democracy is one of the world's marvels of equal administration and police between the states and the center. Sardar renamed the ICS as IAS while retaining many of the elements of governance developed by the British to ensure that the country's diversity and controversies did not undermine the unity of the nation. IAS officers did not get a chance to work with Sardar as Sardar lived for only two years after its establishment. But there is no doubt that the old ICS officers worked with Sardar with devotion and loyalty.¹²

Shri Laheri, a civil servant who retired as Chief Secretary to the State Government after serving as Principal Secretary to six Chief Ministers of Gujarat, recommended reading of Sardar Vallabhbhai Patel's address to trainee probationers at the All-India Administrative Service Training School at Metcalfe House, Delhi in April-1947 to understand Sardar Patel's concept of the Indian Civil Service. It said: "You are the cornerstone of the Indian service and the future of this service depends on the type of service you want and the tradition you establish. It will also depend on your character, ability and enthusiasm to work."¹³

The words of Sardar's inaugural address seem to emphasize the dream of an all-India administrative service envisioned for him. He added that the days of the old tradition (Indian Civil Service i.e. ICS under British rule) are now over, and IAS i.e. Indian Administrative Service is taking its place. Sardar Patel, in his address at the time of transfer of power, said that the coming into existence of an all-India administrative service, controlled by Indians and entirely by Indians, instead of foreigners, would create an expectation that it would serve the nation in the truest sense and that it would shun old traditions and habits. He also called for a disciplined approach to nation building with patriotic national rulers instead of foreign owners. Sardar advised the civil services to remain neutral as far as possible and run the administration without indulging in corruption and at the same time asserted that 'as a civil servant you cannot afford to participate in politics, nor should it be done. No civil servant shall involve himself in making decisions on a communal basis and is expected to serve the public with integrity and to maintain its dignity.' He rightly wrote that the new generation of civil servants should not be led astray by any black sheep and should obey without any fear or selfishness or expectation of any other benefit. He also appealed to the early members of the civil service to take prompt action and be active in studying and solving people's problems in great detail.

At a later stage, Sardar Sahib issued a note on 27 April 1948 regarding the formation of the new Indian Administrative Service.¹⁴ This note mentions the action taken in October 1946 to introduce the IAS and IPS services in place of the ICS and IP services as a result of his discussions with the Prime Ministers of various provincial governments.¹⁵ Sardar appointed a committee under the chairmanship of an ICS officer named ADG or Wala to submit a report on the shortage and requirement of officers at the center and provinces. In the last week of March 1948, after discussions with the Chief Secretaries of various provincial governments on the report submitted by this committee in September 1947, the closure of ICS recruitment was elaborated.¹⁶ The union Home Minister was in favor of giving opportunities to fresher in civil services.¹⁷

Despite the opposition of the senior members of the congress in the Constituent Assembly on 10 October 1949, Sardar Saheb felt it appropriate to seek their support in a positive direction by giving constitutional assurances to the civil servants and engaging them in the work of nation building. He lauded the performance of such ICS officers during the last two to two-and-a-half years and requested the Constituent Assembly not to cast any doubt on their loyalty while providing constitutional protection to their special rights. At one stage, he told, "What did Gandhiji teach us? It's good to talk about Gandhian thought, Gandhian philosophy and Gandhian administration, but coming out of jail, you talk about taking revenge on those who sent you to jail"¹⁸ This is not a Gandhian way. It seems to cross that path and go away.¹⁹ Expressing the dignity of the ICS officers, their respect, their reputation and the public sentiment for them, the

Sardar expected everyone's cooperation in maintaining the national Interest by involving them in the administration of the country.

In the post-independence period, there were several occasions when Sardar Patel, who was the Home Minister and Deputy Prime Minister, had to clash with Prime Minister Pandit Jawaharlal Nehru on the issue of maintaining the dignity of civil servants. Communal clashes erupted in Ajmer in December 1947 due to clashes between Muslims and Hindu Mahasabha and Arya Samaj. Shankar Prasad was handling the matter as Chief Commissioner of Ajmer. Vallabhbhai Patel strongly objected to the fact that Principal Private Secretary H. V. R. Iyengar was sent by Prime Minister Nehru to investigate the situation in Ajmer while he was doing his duty by keeping in touch with Sardar Patel's department. On 22nd December, 1947 Shankar Prasad wrote to Sardar's personal secretary V. Shankar expressing his grief that Iyengar's visit to Ajmer had weakened his image and discredited him.²⁰ "As a government servant, I am aware that I have no right to question the government's decision, nor do I wish to do so. I care about my personal reputation and position, so I don't see government reaction on this issue. However, what did I do to create distrust in my performance that necessitated an inquiry by my superiors? At least I feel I have a right to know."²¹ This dispute led to a fierce backlash between the Prime Minister and the Deputy Prime Minister and Nehru wrote to Sardar, "If I want to continue as Prime Minister, my independence should not be restricted. I should be allowed to give directions. Otherwise, it would be better if I retire."²² In response to his letter, Sardar pointed out that, "There is no question of your resigning or controlling your work. But when you push into the jurisdiction of another minister, it becomes impossible for someone like me to work."

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In January 1948, both the Prime Minister and the Deputy Prime Minister took this matter to Gandhiji's court. The notes presented to Bapu regarding the differences between the two. Sardar presented a clear role that the Prime Minister is "First among Equals" and does not have any additional authority over the Cabinet Ministers.

Sardar made civil service officers aware of their responsibility to the nation by choosing to treat them as partners in carrying out administrative responsibility²⁴ rather than mere servants obeying the orders of the masters (political authorities). He put his trust in them and that mutual trust lasted till Sardar lived. Defense Secretary H.M. Patel (1948-50) who acted as a Sardar's shadow and secretary like V P Menon Who consistently sided with Sardar in his grand scheme of princely states or home secretary like H.V.R. Iyengar has repeatedly stated this and even recorded in the memories.

The Deputy Prime Minister and the Home Minister In January 1948, both the Prime Minister and the Deputy Prime Minister took this matter to Gandhiji's court. The notes presented to Bapu regarding the differences between the two. Sardar presented a clear role that the Prime Minister is "First among Equals" and does not have any additional authority over the Cabinet Ministers.

The Deputy Prime Minister and the Home Minister, who were intimate with civil servants, did not condone civil servants who deliberately neglected or delayed the execution of their proper orders. This is seen in the chapter on the appointment of the famous Urdu poet Josh Malihabadi as the Minister of Information and Broadcasting of the Government of India as the Editor-in-Chief of 'Aajkal'.

"Sardar Patel ordered his personal secretary V. Shankar to submit Joshi nationalist ghazal. Poets like Firak Gorakhpur Sahir Ludhinavi, Kaifi Azami and Mahinder Singh Bedi participated in the special presence of Josh Mahlihabadi at the house of United Coffee House owner Kishanlal in Delhi. Pandit Nehru was always present in that December mushaira. Josh Malihabadi was an exception, though Sardar hated communist thinkers. Uttar Pradesh Governor Sarojini Naidu recommended Josh Malihabadi's name to Sardar Patel. Josh, a somewhat hot-tempered and drunkard, was ordered to be appointed as the editor-in-chief of 'Aajkal', but the department secretary N.C. Mehta did not realize to issue his appointment letter for months, so the Sardar overruled him. Not only that, he was transferred to Himachal Pradesh, far away from Delhi. Sardar Patel does not like bureaucrats ignoring or delaying execution of his orders, Josh's appointment letter went out immediately and he was introduced to Vallabhbhai's kind nature when he met the Sardar to thank him."²⁵

Constitutional Safeguard:

Sardar Patel created a constitutional security cover for the ICS officers and also for the officers of the new cadre including IAS, IPS created by him, without being motivated by any kind of fear or inducement, to serve as custodians of the nation's interests neutrally, from time to time to civil servants under Article 311 of the Constitution of India. The highway was opened to provide safety. Even after the abolition of constitutional provisions for ICS officers in 1972, the constitutional provisions of Indian civil servants under Article 311 are still in force today. These provisions are as follows.

Constitution Article-311:

In the matter of dismissal, suspension or demotion of a person serving in the Central or State in the civil service

1. A person working in the Central or All India or State or any other civil service cannot be ordered to suspend or suspend duty by the authorities lower than him.
2. Any person serving in such service shall be informed of the charges against him and given a reasonable opportunity to present himself without sufficient investigation and the person concerned need not be given an opportunity to make representations regarding the proposed penal action if during the investigation based on the evidence of the penal action against him, but for that,
 - a) When an employee is found guilty of a criminal act, that person is removed from his position or is reprimanded. Or
 - b) When the authority empowered to remove the employee from the post or reduce his status is satisfied that for any reason, which may be determined in writing by the authority, it is not practicable to hold such inquiry Or
 - c) When the President or the Governor is satisfied that it is not expedient in the interest of the security of the State to conduct such investigation.
3. When there is a question of investigation against the person mentioned in Clause-2, the decision of the appropriate authorities to reduce or remove such person shall be final ²⁶

General of India C. Rajagopalachari, in the memory of Sardar Vallabhbhai Patel, in his lecture given by Akashvani-Mumbai on 14th August 1955, called 'Good Administrator'. While delivering the first Patel memorial Lecture, Rajaji compared the British bureaucracy with the Indian bureaucracy, trying to bring the Indian rulers and people out of despair. Rajaji's words were something like this,

"Hundreds of years ago the authorities in Britain were inefficient, careless and largely corrupt. Today they are efficient, well informed and highly loyal. I have taken this from the British Council publication. In our country too we can expect exemplary officers if democratic politics and communal politics allow them to work freely and do not hinder progress and neutrality" ²⁷

Sardar Patel chose to provide security to civil services officers by dividing them into two parts in order to guarantee constitutional safeguards. (1) To provide security under service rights to the ICS and IP officers who were employed in the service of the Central Government as well as the Provincial Governments. (2) The two civil services, the TAS and the IPS, which came into effect after the transfer of power, had the unanimous support of the provincial governments, and were to be provided with security as per constitutional provisions. The Sardar expected from civil servants to perform efficient disciplined and satisfactory work by creating stability and confidence in them by providing constitutional guarantees and security and that they work with sincerity and honesty ²⁸ in the administration of 'a democratic system of governance rather than a despotism. As the country's first Home Minister, he expected civil service officers to operate on a non-partisan basis and, at the same time, to minimize, if not eliminate, the interference of political rulers in their appointment process or in maintaining discipline and control. On 30 April 1948, the question of constitutional provisions for civil services was to be brought up for discussion in a meeting of the Council of Ministers. Then, in a note sent by Vallabhbhai

to Prime Minister Nehru on 27 April, he discussed in detail the need to provide security rights to employees of the central and provincial governments²⁹ Sardar clearly notes in this letter that in order for civil servants to work diligently and honestly, they should feel satisfied and secure in the service. In his view it was imperative that the administration be efficient and disciplined. With reference to the above letter to him, in 1946 i.e. two years ago, the decisions of the Prime Ministers in the various provinces had been finalized in matters affecting the concerned authorities, so there is no room for criticism in the matter of the formation of such services or the imposition of necessary rules and restrictions in preparing them. He also pointed out that instead of providing the civil servants with a constitutional safeguard, he felt it was a grave mistake to control them under the Central and Provincial Legislatures. That is why he was right to believe that it was imperative to provide constitutional guarantees and safeguards to such officials. He discussed the legal situation in this regard with Dr. Ambedkar.³⁰

Considering all the above matters, Sardar Saheb was very serious about joining civil services in nation building. By studying all the aspects related to these matters, he deeply pondered how to move forward in the direction of development of the nation by maintaining a balance between a contented and efficient bureaucracy and democratic rulers. Sardar who were consciously supporters of the rights of the officers, at the same time Sardar also expected strict enforcement of discipline from the officers. According to him, the administrative system should be completely free from bias and keep itself away from participating in politics by being free from corruption, maintaining its dignity³¹ by performing its functions neutrally and not taking any decision motivated by communal sentiments.

In the note he wrote about the civil services in April 1948, Sardar Sahib also noted that corruption had crept into the administration. At the same time, he dreamed that the new generation of civil servants would work sincerely without being misled by such black sheep, without any fear or bias or being lured into unexpected benefits.

When the All India Civil Service and ICS officers were discussed in the Constituent Assembly on 10 October 1949, many senior members, including Prime Minister Nehru, protested against the provision of constitutional facilities and promises to civil servants and expressed doubts about their patriotism, nationalism and devotion to duty. Vallabhbhai said: "I have had the opportunity to work with many of them, so I can say without hesitation that they are as patriotic, nationalist and dutiful as I am. They are the responsible organ and carriers of the administration. I see a picture of chaos emerging in the whole country if they are removed."³² Against such a view of Sardar Sahib, no opposition could stand in the Constituent Assembly and Article 283 (A) was unanimously added to the Constitution. In addition to the provisions stipulated under Article-311 of the Constitution if politicians or political rulers punish civil servants, provisions and privileges were included as per the assurance given by Sardar Patel to the serving officers under Article-314.³³

The senior members of the Constituent Assembly felt it was appropriate to debate against the insistence of Sardar Patel and member of the Constitution Drafting Committee K.M. Munshi to provide privileges and security cover to the ICS officers. To a large extent, there was a lot of debate against the ministers getting a salary of Rs. 750 to 1000 while such ICS officers get a salary of Rs. 2000 to 3000. While Mahatma Gandhi expected the ministers of independent India to live simply and get a salary of only Rs. 500, the members of the Constituent Assembly and even the senior Congress leaders were protesting against the officials getting a higher salary or better cars than the ministers. Therefore, going forward from the earlier discussion that corruption was prevalent during the period of independence, it can also be said that the Congress leaders of the freedom fighters, who were bent on the freedom struggle, were expecting fruits in return for their services as soon as independence was achieved.

Member for Assam, Rohini Kumar Chaudhary, sought to weigh the dignity of the posts of ministers and their secretaries against the pay scale and other facilities. Rohini Kumar said, "While ministers get a salary of Rs. 750 to 1,000, ICS secretaries get a salary of Rs. 2,000 to Rs. 3,000. Ministers hit the road to get their old rickety cars running as they cannot afford new motorcars. On the other hand, the secretaries passed by the ministers in their rudimentary motorcars, waving their hands and making fun of the Prime Minister. They don't even bother to stop the car, as their fashionable wife sits beside them. Such a course of events should not be allowed to take shape again. There should be no such difference between the posts of Minister and Secretary. To put an end to this matter, all ministers should be given

government vehicles. Also, I have noticed that secretaries don't like to visit ministers' houses because nowadays ministers cannot paint their houses like ICS secretaries" ³⁴

M. Anantharaman Iyengar, a member from Madras, expressed doubts about the political integrity of the ICS officials. He also spoke of being a British Government officer and being of another country prejudiced about his allegiance to the people of our country. He said that the Emperor of England could pay him a heavy salary scale but not us. He said, "Governor General getting Rs. 21,000 per month, Governor Rs. 10,000 per month and Secretary Rs. 4,000 per month is not commensurate with our national income. Our national per capita income is not more than Rs. 100 per year while Great Britain's per capita income is Rs. 1,200 per year" ³⁵ Iyengar even said that they should be ashamed of the fact that corruption is prevalent even though the salary of the joint secretary is Rs. 3000 and that of the chief secretary of the department is Rs. 14,000.

A row was created against him in the Constituent Assembly over his adverse comments about British India's ICS and IP officers. And when most of the Congress leaders starting from Prime Minister Pandit Nehru insisted on rejecting the proposals proposed by Sardar's loyal K.M. Munshi by bringing forward the mistreatment of the Congress leaders by civil servants under the British. In this debate, even though Sardar Patel was in favor of providing constitutional security cover to the civil servants, his position was full of dilemma. Sardar Patel, however, staked his reputation and emphasized the noble contribution of ICS officers to the administration during the last two to three crisis years. He asserted that if adverse decisions are made in the Constituent Assembly with hatred towards such dutiful civil servants, it will be considered as a great disservice to the country. During the British rule, these officers were loyal to the crown. But in the post-independence years, they will stand with the political rulers of independent India, as a patriotic, nationalist and dutiful, and will serve in a way that proves his efficiency and his will not be found anywhere else ³⁶. It seemed that the opinion of the entire Constituent Assembly had changed after listening to the events of self-experience in the talk of Sardar Patel. Sardar said, "This is not a Congress platform. In the resolution passed in Karachi, we are said to have promised to give Rs. 500 to the ministers. However, there is a long distance between then Karachi and today's Delhi. There is also a difference in the situation of both. Today, you need Rs. 45 per day as income tax free allowance. What is the meaning of taking Rs. 500 today? So, this is wrong" ³⁷ At the same stage, Sardar Sahib said that army cannot be kept according to Gandhian philosophy, but today the Indian government has to spend Rs. 160 to Rs. 170 crores to keep the army. The spirit behind these words of the Home Minister was that from time to time one has to accept a realistic role and change one's opinion. Similarly, in the post-independence situation, ICS officers were expected to cooperate in the nation building work. Although he himself was a supporter of Gandhiji's ideas and views, Sardar clearly said that Gandhiji's point of view was not maintained even in working with the view that 'these people put me in jail and therefore let me take revenge'. And also gave an opportunity to those who suggested amendments to present them. At the end of the discussion, the entire House unanimously approved the resolution to include the constitutional provisions for civil servants in the Constitution, accepting the role of Sardar Patel, barring one or two amendments.

Conclusion:

Sardar Vallabhbhai Patel, who went to London and became a barrister, left his lucrative practice in Ahmedabad and entered public life under the influence of the father of the nation, Mahatma Gandhi. In the early years, Sardar made conscious efforts to bring justice to the people by fighting with the British ICS officers in the Ahmedabad Municipality and while leading various satyagraha's. The same Sardar Patel, when he came to assume responsibility from the provincial governments to the interim central government as the most influential leader of the Congress, behaved cordially and cooperatively with the same British officers, British and native ICS officers and IP officers for the sake of national interest and the welfare of the people. Sardar Patel, who had once made British civil servants to realize their worth, proved to be successful in getting the support of these same officers in building the nation when Swaraj was coming. In the matter of giving privileges to ICS officers in the Constituent Assembly, when most of the Congress leaders expressed doubt about the patriotism, nationalism and duty of the civil servants who were following the orders of the British government, Sardar Patel even risked his reputation and Based on his own experience Sardar stood as a witness to the patriotism, nationalism and duty of such civil servants. Although Sardar's favorite leader and Prime

Minister Pandit Jawaharlal Nehru also disagreed on the issue of civil servants, Sardar became succeed in managing to swing the vote of the Constituent Assembly and acceptance of provisions including constitutional privileges and job security for civil servants.

The Sardar had the magical power to make even the enemy a friend in the interest of the nation. Civil servants who were ever enemies of Sardar Patel. Sardar gained trust by working together with him and as a result Sardar Patel was able to influence most of the civil servants and inspire them in the work of nation building. Sardar got unanimous support as early as 1946, by holding a conference of the Prime Ministers of the Provincial Governments, to launch the IAS and IPS services, equivalent to the ICS and IP. It introduces his foresight. Sardar Sahib expected that the civil servants would not become mere servants and function as true custodians of the nation's interests. He also clarified this matter in the Constituent Assembly that if our political rulers will not allow civil servants to freely express their views in the interest of the nation, then the country will suffer in the end. He wanted civil servants to serve the nation regardless of political affiliation. Sardar Patel also gave his secretary the opportunity to present his opinion in writing without fear of selfishness and also told him that the matter was in the interest of the nation.

The Constituent Assembly accepted Sardar Patel's insistence of making special provisions in the Constitution so that the civil servants do not show corruption and arrogant behavior and continue to work efficiently so that the political rulers do not punish them arbitrarily and they continue to get satisfactory salaries and facilities. These provisions were applicable to new IAS and IPS officers besides ICS and IP officers. Due to this, the officers got the opportunity to do more work without fear or bias.

Sardar Saheb was able to instill confidence in the civil servants and as a result the great work of annexation of the native princely states to India was made successful in a very short time with the active support of these officials. He had faith in the officers and the officers were also willing to do the work of national interest assigned to them. However, his fear of corrupt and short-tempered officials was such that Sardar Sahib did not tolerate any delay in the implementation of decisions. It is not felt that Sardar Patel has ever made any distinctions between the officers by birth, caste, religion or region. During the days of the partition of the country, most of the British officers either went abroad or joined the service of Pakistan. And when most of the Muslim officers left for Pakistan, Sardar Patel did not make any distinction between majority and minority officers in maintaining law and order in the country. Due to Sardar's favorable attitude towards civil servants and his desire to involve them in the nation-building of independent India, and because of this, the day after Sardar Sahib's death on 15 December 1950, a condolence meeting of civil servants was held under the chairmanship of ICS officer Girja Shankar Bajpai. And it was a rare occasion in the history of India that the ICS officers held a condolence meeting for a politician for the first and last time in the history of India.

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An International Peer- Reviewed, Referred and Indexed Journal **1 (1)**

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